

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.72925 of 2024

Saif Ali **Versus** Deputy Commissioner, Lahore, etc.

Sr. No. of order/ Proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary.
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<u>20.10.2025</u>	Mr. Nadeem Shibli, Advocate for the petitioner. Ms. Khalida Parveen, Additional Advocate General with Muhammad Sibtain, DSP & Imran, SI.
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Petitioner seeks police protection with the assertions that he is dealing in food items and had taken on lease some franchises at Motorway (M2) in District Sheikhupura to Kalarkhaar, District Chakwal, with a tuck shop leased out by MORE Pvt Ltd Company in the name and style of ‘Bake and Bite’ at rest area Pindi Bhattian in RD-109 Motorway (M2-South), where on 19.05.2021 he witnessed the murder of his employee Ishfaaq Hussain son of Ata Muhammad during a dacoity and on registration of FIR bearing No.184 u/ss 302/458/109/392/411 PPC at Police Station Kaseesay Hafizabad, he is on the hit list of dacoits.

Further, in the year 2022, Amanat Ali Advocate High Court, his brother-in-law along, his wife (**real sister of the petitioner**), namely, Hafiza Shabana Bibi and their innocent daughter were brutally slaughtered/murdered; FIR bearing No.1023 of 2022 U/ss 302/34 PPC stood registered at Police Station Chung Lahore wherein the petitioner is a star witness. Ashiq one of the accused of such FIR, was later eliminated through encounter, whereupon on the complaint of Farooq Asghar Awan, Inspector CIA, FIR bearing No.1457 of 2022 was registered at Police Station Chung, Lahore, due to which petitioner is receiving threats from the relatives of said Ashiq. Another incident for abduction of his only minor son by the members of a Thug Gang was formalized through FIR

No.261 of 2023 at Police Station Saddar Sheikhpura. Amin, another accused involved in the murder of his brother-in-law, sister and the kid, tasted his death along with his wife within the area of Police Station Islampura, Lahore and petitioner was booked in FIR bearing No.3155 of 2023 registered on 13.07.2023 for such occurrence, though on the alleged day of occurrence he was in Cantt. area Peshawar.

2. Learned counsel for the petitioner (to be called as LCP) submitted that petitioner approached the police hierarchy at district Lahore for protection to his life and family members when he was advised rather directed to curtail his movement within Lahore city due to an apparent threat and danger to his life, but his demand of a security guard on payment of requisite fee was declined. Hence, this petition.

3. LCP urged that police protection is being provided to the officers of local administration, police, local MNAs and MPAs and to the eminent persons from all walks of life but same was refused to the petitioner, and despite number of directions issued by this Court; neither he was ever heard by Deputy Commissioner nor the District Intelligence Committee (DIC), but every time his request was turned down without assigning any reasons. Discrimination was also claimed while comparing the case of petitioner with Sahibzada Zahid Mehmood Qasmi (to be called as “SZMQ”) who was provided requisite police protection.

4. Report was submitted by Inspector General of Police, (Respondent No.5) with an indirect reference of DIG Operations who was directed to place the case of petitioner before the DIC and to take further action in the light of recommendations. In response DIG Operations Lahore reported that earlier a like application of the petitioner dated 17.02.2023 was placed before DIC in its meeting dated 29.04.2024 (which as per record is of 29.04.2023), and it was recommended that petitioner can arrange two private guards at his own from a security agency approved by the Home Department. In the report of DIG Operations, it was

also mentioned that pursuant to order in earlier writ petition No. 50319/2023, his application sent to Deputy Commissioner Lahore through letter dated 24.08.2023, was placed in meeting of DIC held on 30.08.2023, and it was again recommended that petitioner can arrange two private guards. In another meeting of DIC dated 02.11.2024 his request was once again turned down that there is no imminent/specific threat to the life and property of the petitioner. Respondent No. 5 has also appended all above reports of DIG Operations with his comments which are available on the record.

5. LCP responded that despite the permission by DIC, neither the petitioner was allowed to move with private guards nor police is providing protection in any manner. Further states that report on behalf of respondent No. 5 is against the direction of this Court dated 26.11.2024. according to him he had assailed the decision of DIC conveyed by DIG Operations to the Inspector General of Police through letter No. 842/WP-Ops dated 23.10.2024 for declining police protection to the petitioner, which shows that meetings of DIC were held on 01.03.2023, 19.04.2023, 29.04.2023 and finally on 30.08.2023, but he had not moved any applications on 01.03.2023, 19.04.2023 or 29.04.2023. LCP probably has misread the situation otherwise such meetings were being held pursuant to his application dated 17.02.2023, therefore, it cannot be accepted a padding as alleged. However, claim of discrimination was brought on record through CM No. 2/2025 showing the fact that pursuant to writ petition No. 32060/2024 filed by SZMQ, on order by this Court dated 23.05.2024, Deputy Commissioner Faisalabad while deciding the application provided him the requisite protection. In reply to said CM, report was submitted by DIG Operations Lahore that matter of SZMQ relates to Faisalabad District; DIC of every District has its own statistics for threat assessment, and as per information police protection earlier provided to him now stood withdrawn. LCP alleged that report is frivolous because he had a personal interaction with constable attached with SZMQ. Learned Additional Advocate

General intervened the situation and requested that some time may be granted to develop a contact with CPO Faisalabad. She later submitted report on his behalf bearing No. 946-PAL dated 18.10.2025 which clarified the situation that on seeking police protection, a constable/gunman was though deployed with SZMQ vide order No. 280 dated 07.03.2025 yet his request for provision of squad was declined by the DIC. Thus, contention that security was withdrawn, stands falsified. For an interim relief LCP while relying on case reported as “Mst. AMINA BEGUM AND OTHERS Versus Mehar GHULAM DASTGIR” (PLD 1978 Supreme Court 220) had also filed CM. No. 4 for permitting the petitioner to travel with private guards as conceded by the Police hierarchy cited above, and finally, through CM. No. 5 the police protection policy dated 26th April 2018 issued by the Government of the Punjab Home Department was brought on record. Deputy Commissioner Lahore has also submitted report in this writ petition with the assertion that without being influenced from the minutes of meeting dated 01.03.2023, 19.04.2023, 29.04.2023 and 30.08.2023, the matter was once again concluded on 18.02.2025 in the meeting of DIC, with same recommendations. He further contended that he is bound to give weight to the reports/information of law enforcement agencies in the light of judgments reported as “HUBDAR HUSSAIN MALIK Versus DEPUTY COMMISSIONER CHAKWAL and another” (2020 SCMR 1507) & “RIAZ HANIF RAHI Versus FEDERATION OF PAKISTAN and others” (PLD 2020 Islamabad 175), and he has no personal grudge and enmity towards any person rather his decision is based on good faith and judicious approach.

6. Heard. Record perused.

7. Constitutional protection for right to life is not subject to any statutory conditionalities and it would be saved at any cost. This command is the spirit and essence of divine directions enshrined in the Holy Quran that whoever saves one life is as if they have saved all of humanity (5:32). This verse is used to encourage acts

of kindness and for reminding that for saving a life one must go even beyond its private or official extent. This also requires that State should have a passionate approach to take every suitable measure to save life of its subject. According to the Article 7 of the Constitution of the Islamic Republic of Pakistan 1973 (“the Constitution”), “State” includes Provincial Government or any local authority; thus, they must have big heart to represent the State. With this prelude, let’s see on the present day which law or policy regulates the provision of police protection to the individuals. At first occasion, it would be appropriate to examine the Policy of Home Department dated 26th April, 2018 relied upon by the Deputy Commissioner Lahore and brought on record by LCP through CM No. 5.

8. There are 16 categories in the Policy 2018, whom either one guard (One Head Constable and Four Constables) or two motorcycles gunmen or one gunman is provided for security and protection; however, additional security can also be provided depending upon the threat assessment. The above categories include the Prime Minister, Chief Justice of Pakistan, Chief Justice of Lahore High Court, Judges of Superior judiciary, Federal Ministers, Chairman Senate, Speaker National Assembly, Governor, Chief Minister, Chief Secretary, Inspector General of Police, Senior Police Officers, Senior Bureaucrats, Ombudsman, Advocate General, Prosecutor General, Foreign Diplomates if on visit in Punjab and many others. However, para-4 of the policy is relevant in this case and the categories mentioned therein are as follows;

The eminent persons from different walks of life including main leaders of political parties, learned Judges, Ministers, Senators, Parliamentarians, Speakers and Deputy Speakers, religious leaders, **businessmen**, media persons, lawyers, professionals and Government servants etc. who face threats to their life from terrorists, sectarian groups and miscreants shall be provided security by Punjab Police as per threat assessment made and quantum of security thereof determined by the Provincial Intelligence Committee on the basis of recommendations of Divisional or District Intelligence Committees. The security, so provided, shall not be a permanent feature and shall be reviewed on quarterly basis for enhancement, reduction or withdrawal depending upon threat assessment by the Provincial Intelligence Committees in the light of

revised recommendations of Divisional and District Intelligence Committees.

As per para-5, Policy further says that Home Department or Inspector General of Police, on the basis of credible intelligence, shall, from time to time, issue instructions to the concerned police formation or relevant stakeholders for provision of security to a person facing urgent security threat, at his or her residence, place of temporary stay and place of work for a period of 30 days, subject to review thereafter by the Provincial Intelligence Committee.

9. In para-4 of the policy, the word “eminent persons” do include “businessmen” like the petitioner, yet neither threat assessment was made objectively by DIC with quantum pro nor rejected fact-statistics as flew from ensued effects of FIRs cited above. Assessment must contain the discussion on fact sheet provided by the person seeking protection, though declining reason may not be given if disclosure exposes the secrecy of the system for collecting information. Functionaries are the best judge to evaluate the nature and magnitude of threats so as to take all appropriate remedial measures/steps required to obviate impending disaster, therefore, these are not justiciable issues as held in a case reported as “HUBDAR HUSSAIN MALIK Versus DEPUTY COMMISSIONER CHAKWAL and another” (2020 SCMR 1507).

10. The regulation of process for police protection through Policy of Home Department loses its efficacy when a statutory law is available on the subject. The Punjab Special Protection Unit Act 2016 stood promulgated for the constitution of Special Protection Unit in the Police for the purposes of providing dedicated security to the “**foreigners**”, “**important persons**” and “**premises**”; and, for other purposes. Section 3 of such Act says that government shall notify the constitution of Special Protection Unit whose administration shall vest in director who shall be a Deputy Inspector General of Police and include other members

listed therein. Director shall discharge his function under the supervision and control of Provincial Police Officer. Section-5 of the Act says that the Unit shall ensure protection of foreigners, important persons and premises as may be notified by the Provincial Police Officer. Though there is no definition of “**important persons**” in the Act, yet it has been left at the discretion of Provincial Police Officer who as per section 5 of the Act can notify any person whom he considers important at any point of time, and such power must be exercised liberally with full scope to all who are in need. Notification for constitution of Special Protection Unit was requisitioned; learned Additional Advocate General states that SNE (Schedule of New Expenditure) has been submitted to Finance Department for year 2025-26 and it is likely that the posts in Unit shall be filled in soon. Thus, without referring the matter to DIC under the Policy of Home Department, Director Special Protection Unit can provide police protection directly to the people who are in need of and whom the Provincial Police Officer has declared important persons. Even otherwise DIC operates as a security wing for recommendation about police protection to any of the citizens without seeking any application.

11. Besides above referred Act, the Police Order 2002 also caters to the requirement of police protection. By virtue of Article 4, subject to law, it is the duty of every police officer to protect life, property and liberty of citizens. **Article 30** of Police Order 2002 regulates the appointment of additional police which says that City Police Officer and District Police Officer subject to the approval of the Provincial Police Officer, and Capital City Police Officer may appoint additional police officers of such rank and for such time as he may deem fit for the purposes stated in their employment orders. The employment of additional police **may be made at the request of any person reasonably requiring such police** and the cost of such employment shall be recovered in such manner as provided under this Order or rules made there under. Employment of additional police to keep peace or for other

purposes on the request of any person or the organization is also permissible under the said Order subject to cost borne by them. In this respect, Articles 126 & 127 of Police Order 2002 are referred below;

126. Employment of additional police to keep peace. – (1) Capital City Police Officer or City Police Officer and District Police Officer subject to approval of Provincial Police Officer may on application of any person depute any additional number of police to keep the peace, to preserve order, to enforce any provisions of this Order, or any other law, in respect of any particular class or classes of offences or to perform any other duties imposed on the police.

(2) Subject to rules, such additional police shall be employed at the cost of the person making the application.

(3) If the person upon whose application such additional police are employed gives one week's notice for the withdrawal of the said police, he shall be relieved from the cost thereof at the expiration of such notice.

(4) If there is any dispute on payment, Head of District Police on an application by the aggrieved party may refer the matter to the Government for final decision.

127. Employment of additional police at the cost of organizers, etc.– (1) Whenever it appears to Head of District Police that–

(a) any large work which is being carried on, or any public amusement, or event at any place is likely to impede the traffic or to attract a large number of people; or

(b) the behaviour or a reasonable apprehension of the behaviour of the persons employed on any railway, canal or other public work, or in or upon any manufactory or other commercial concern under construction or in operation at any place, necessitates the employment of additional police at such place; he may depute such number of additional police to the said place for so long as the necessity to employ the additional police shall appear to be expedient.

(2) Subject to rules, the cost of such additional police shall be borne by the organisers of such events or employers of such works or concerns, as the case may be, at rates approved by the appropriate government from time to time.

Such appointment of additional police is further regulated through **Rules 2.9 to 2.13** of the Police Rules 1934. Similarly, concept of appointment of personal guards for dignitaries by the Police establishment finds its place in **Rule 18.20** of the Police Rules 1934.

12. Though petitioner being businessman was entitled for police protection due to blatant threats yet being witness in above cited FIRs, could have also been protected by Witness Protection Unit established under the Punjab Witness Protection Act 2018 which

was legislated to provide for measures to protect witnesses or other persons connected with the investigation, prosecution and trial of certain criminal proceedings relating to the offence of terrorism, sexual offence or any other serious offence; and, to provide for ancillary matters. Three out of four FIRs referred above were of serious offences because such Act defines “serious offence” as an offence punishable with death or imprisonment for life or for a term exceeding seven years and includes a sexual offence but does not include an offence of terrorism. Under said law, the government in consultation with Witness Protection Board has established Witness Protection Unit which consists of two categories. Unit-1 relating to the offences of terrorism; and Unit-II relating to the serious offences which can provide protection to witness after considering the following matters while determining the risk of a person:

- (a) the risk profile of the person involved;
- (b) the nature and gravity of the threat to that person; and
- (c) the measures required to eliminate or reduce the risk at the minimum possible cost.

with following non-court measures;

- (a) **provision of close protection service;** (b) lodging in a safe house; (c) temporary or permanent relocation at a safe place; (d) change of identity; (e) concealment of identity of the persons involved in the criminal proceedings; and (f) providing financial assistance to a protected person who is unable to undertake regular employment or when his freedom of movement is severely curtailed as a result of protection to him.

13. All of the measures like, under the Policy of Home Department, the Punjab Special Protection Unit Act 2016 (if becomes operative), Police Order 2002, Police Rule 1934 and the Punjab Witness Protection Act 2018 favour the petitioner to be provided police protection but it has simply been declined on the report of DIC, which is not sine qua non for providing police protection to the citizen of Pakistan if he requires in any situation which endangers his life. DIC is operating in our system only to post cautions to the Deputy Commissioners concerned to provide

police protection to any person in order to avoid law and order situation, otherwise, Police at its own is legally competent to provide security or protection to any person under the laws cited above. Statute on the subject always surpasses every on ground policy, because police only represents a suggestive process; therefore, it is held that matter of police protection is to be taken by the Police Establishment independent of DIC's recommendation under the laws & Rules cited above. However, recommendation to provide protection to any person by DIC shall remain operative on the administrative side.

14. Consequently, this writ petition is allowed and Inspector General of Police (Provincial Police Officer) Respondent No. 5 is directed to provide police protection to the petitioner immediately.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved For Reporting:

Judge

Signed on 30.10.2025

*M. Azhar **